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Provision of December 19, 2024

Register of provisions

No. 835 of December 19, 2024

THE GUARANTOR FOR THE PROTECTION OF PERSONAL DATA

IN THE meeting held today, attended by
Prof. Pasquale Stanzione, president, Prof.
Ginevra Cerrina Feroni, vice president, Dr.
Agostino Ghiglia and Attorney Guido Scorza, members, and
Dr. Claudio Filippi, deputy secretary general;

HAVING REGARD TO Regulation (EU) 2016/679 of the European Parliament
and of the Council, of April 27, 2016 (hereinafter "Regulation");

HAVING REGARD TO Legislative Decree No. 196 of June 30, 2003 (Code regarding
the protection of personal data, hereinafter "Code") as amended by Legislative Decree No. 101 of
August 10, 2018, containing "Provisions for the adaptation of
national legislation to the provisions of Regulation (EU) 2016/679";

HAVING REGARD TO the note of January 18, 2024, by which the Carabinieri Command for Health
Protection - N.A.S. of Treviso reported the presence of a
surveillance system not compliant with the regulations on the protection of personal data;

HAVING REGARD TO the report of the inspection carried out on January 16, 2024, by the Carabinieri
of the N.A.S. at the Green Life Medical Center S.r.l.;

HAVING EXAMINED the documentation on file;

HAVING REGARD TO the observations made by the Secretary General pursuant to Article 15 of the
Guarantor's Regulation No. 1/2000;

REPORTING by Dr. Agostino Ghiglia;

PREMISE

1. The report.

With the note of January 18, 2024, the Carabinieri Command for Health Protection - N.A.S. of Treviso
informed this Authority that at the
multi-specialty clinic Green Life Medical Center S.r.l. (hereinafter "the Company"), a surveillance
system was operational, consisting of four external cameras and one internal camera.
According to the attached report related to the inspection carried out on January 16, 2024, the system
was not indicated by
informative signs and furthermore, the authorization from the Labor Inspectorate had not been
requested, in light of the presence of an employee.

2. Notification of violations and defensive memoranda.

With the note of April 23, 2024, the Office sent the data controller the communication of the initiation of
proceedings for the violation of Articles 5,
paragraph 1, letter a) and 13 of the Regulation, inviting him to produce any defensive memoranda.
The company, with the communication of May 23, 2024, stated that "At the time of the inspection on
01/16/2024, carried out by the N.A.S. of Treviso, the camera system had been active for a few weeks
and was managed
by the App in possession of the sole installer, Michelin Walter of ELETTRIO2000 S.n.c. The external
cameras
were aimed only at the property boundary and were not pointed outside of it. (attached photographs).
As indicated in the N.A.S. control report,
Michelin Walter removed the internal camera and turned off the entire system in context."
The Company also specified that it had requested authorization from the Labor Inspectorate on April

29, 2024, and had installed informative signs regarding the presence of the cameras, “not operational until the receipt of the authorization,” for which it provided photographic documentation, highlighting that no audiovisual device would have been installed inside the medical center.

3. The outcome of the investigation.

From the inspection report drawn up by the Carabinieri of the N.A.S. of Treviso, it emerged that, at the time of

the inspection, the surveillance system installed at the Company was operational and lacked the information regarding the presence of the cameras, as required by Article 13 of the Regulation.

Such conduct is in contrast with what is established by Article 13 of the Regulation, according to which the data controller is obliged to provide

the data subject with all information regarding the essential characteristics of the processing, as well as in

violation of the general principle of lawfulness and transparency of processing, as per Article 5, paragraph

1, letter a) of the same Regulation.

The use of surveillance systems constitutes

processing of personal data pursuant to Article 4, paragraph 1, no. 2, of the Regulation, which must be carried out in compliance with the general principles contained in Article 5 of the Regulation and, in particular, the principle of transparency which presupposes that “data subjects must always be informed that they are about to enter a monitored area.”

For this purpose, therefore, it is necessary for the data controller to prepare suitable informative signs according to the indications contained in point 3.1. of the provision regarding surveillance - April 8, 2010 [1712680] (in this sense also the FAQs regarding surveillance, published on the Authority's website) so that data subjects are made

“aware of the fact that a surveillance system is in operation.”

Similarly, the Guidelines No. 3/2019 of the European Data Protection Board on the processing of personal data through video devices, in point 7), specifies that “the most important information must be indicated [by the data controller] on

the warning sign itself (first level) while further mandatory details can be provided by other means (second level).” The guidelines also provide that “Such information

can be provided in combination with an icon to give, in a clearly visible, intelligible, and legibly clear manner, an overview of the intended processing (Article 12, paragraph 7, of the GDPR). The format of the information must adapt to the various locations. The information should be positioned in such a way as to allow the data subject to easily recognize the circumstances of the surveillance before entering the monitored area (approximately at eye level) “to enable the data subject to estimate which area is covered by a camera in order to avoid surveillance or adjust their behavior, if necessary.”

It has also emerged that the Company installed the video surveillance system without an agreement with the trade union representatives or authorization granted by the Labor Inspectorate pursuant to Article 4 of Law No. 300 of 1970. Such conduct violates the general principle of lawfulness of processing, as per Article 5, paragraph 1, letter a) of the Regulation. If the video surveillance system is capable of capturing employees during work activities, the processing is lawful if it complies with the applicable sector regulations (Article 5, paragraph 1, letter a) of the Regulation). In this regard, Article 88 of the Regulation has preserved national rules of greater protection (“more specific rules”) aimed at ensuring the protection of the rights and freedoms concerning the processing of personal data of workers.

Article 114 of the Code, as a more specific provision regarding remote monitoring of workers, refers, among the conditions for the lawfulness of processing, to compliance with the provisions of Article 4 of Law No. 300 of May 20, 1970. According to this latter regulatory provision, in the case of video surveillance systems that allow for remote monitoring of employees' activities, the installation must, in any case, be carried out following the stipulation of a trade union agreement with the unitary trade

union representation or with the company trade union representatives, or, if such an agreement could not be reached, or in the absence of representatives, only if preceded by the issuance of a specific authorization from the Labor Inspectorate. The activation and conclusion of this guarantee procedure is therefore an indispensable condition for the installation of video surveillance systems.

4. Conclusions: declaration of unlawfulness of processing.

In light of the overall findings, the Authority believes that the statements, documentation, and reconstructions provided by the data controller during the investigation do not allow for overcoming the objections notified by the Office with the initiation of the procedure and are therefore unsuitable to order the archiving of this procedure, as none of the cases provided for by Article 11 of the Garante Regulation No. 1/2019 apply. The processing of personal data carried out by the Company through video surveillance systems is indeed unlawful, as outlined above, in relation to Articles 5, paragraph 1, letter a) and 13 of the Regulation.

5. Order for injunction.

The Garante, pursuant to Article 58, paragraph 2, letter i) of the Regulation and Article 166 of the Code, has the power to impose an administrative monetary sanction provided for by Article 83, paragraph 5, of the Regulation, by adopting an injunction order (Article 18, Law No. 689 of November 24, 1981), in relation to the processing of personal data carried out by the Company through the video surveillance system, in violation of the general principle of lawfulness and transparency of processing, as per Article 5, paragraph 1, letter a) of the Regulation, without having provided the information required by Article 13 of the Regulation and in the absence of an agreement with the trade union representatives or authorization granted by the Labor Inspectorate, in violation of Article 4 of Law No. 300 of 1970.

With reference to the elements listed in Article 83, paragraph 2, of the Regulation for the application of the administrative monetary sanction and its quantification, considering that the sanction must be "effective, proportionate, and dissuasive in each individual case" (Article 83, paragraph 1 of the Regulation), it is noted that, in this case, the following circumstances have been taken into account:

- regarding the nature, gravity, and duration of the violation, the nature of the violation concerning the general principles of processing has been considered, particularly the principles of lawfulness and transparency;
- concerning the intentional or negligent nature of the violation and the degree of responsibility of the controller, the conduct of the Company and its degree of responsibility have been considered, as it complied with data protection regulations only after the investigation by the Carabinieri and the Authority's activity;
- cooperation with the Authority and the absence of specific previous violations of data protection regulations have been taken into account;

It is also believed that the economic conditions of the offender, determined based on the Company's turnover, are relevant in this case, due to the aforementioned principles of effectiveness, proportionality, and dissuasiveness to which the Authority must adhere in determining the amount of the sanction (Article 83, paragraph 1, of the Regulation).
of operation for the year 2023.

In light of the elements mentioned above and the evaluations made, it is deemed appropriate, in this specific case, to apply an administrative sanction against the Company in the amount of five thousand euros (€5,000.00).

In this context, it is also considered that, pursuant to Article 166, paragraph 7, of the Code and Article 16, paragraph 1, of the Garante Regulation No. 1/2019, the publication of this section containing the injunction order on the Garante's website should proceed.

This is in consideration of the type of violations identified, which concerned the general principles of processing, including the necessity to observe the applicable sector provisions regarding processing in the workplace.

ALL OF THE ABOVE CONSIDERED, THE GARANTE

declares, pursuant to Articles 57, paragraph 1, letter f) and 83 of the Regulation, the unlawfulness of

the processing carried out by Centro Medico Green Life srl (VAT No. 05144370266), through the use of the video surveillance system, as detailed in the reasoning, for the violation of Articles 5, paragraph 1, letter a) and 13 of the Regulation;

ORDERS

the same Company to pay the sum of €5,000.00 (five thousand), as an administrative pecuniary sanction, for the violation indicated in the reasoning;

ENJOINS

the same Company to pay the sum of €5,000.00 (five thousand), according to the methods indicated in the annex, within 30 days from the notification of this provision, under penalty of the adoption of subsequent executive acts pursuant to Article 27 of Law No. 689/1981.

It is noted that pursuant to Article 166, paragraph 8 of the Code, the offender retains the option to resolve the dispute by paying – always according to the methods indicated in the annex – an amount equal to half of the imposed sanction within the term provided for the submission of the appeal as indicated below, in accordance with Article 10, paragraph 3, of Legislative Decree No. 150 of September 1, 2011.

ORDERS

pursuant to Article 166, paragraph 7, of the Code and Article 16, paragraph 1, of the Garante Regulation No. 1/2019, the publication of the injunction order on the Garante's website;

pursuant to Article 154-bis, paragraph 3, of the Code and Article 37 of the Garante Regulation No. 1/2019, the publication of this provision on the Garante's website;

pursuant to Article 17 of the Garante Regulation No. 1/2019, the annotation of the violations and the measures adopted in accordance with Article 58, paragraph 2, of the Regulation, in the internal register of the Authority provided for by Article 57, paragraph 1, letter u), of the Regulation.

Pursuant to Article 78 of the Regulation, Articles 152 of the Code, and Article 10 of Legislative Decree No. 150 of September 1, 2011, an appeal against this provision may be submitted to the ordinary judicial authority, under penalty of inadmissibility, within thirty days from the date of communication of the provision itself or within sixty days if the appellant resides abroad.

Rome, December 19, 2024

THE PRESIDENT

Stanzione

THE REPORTER

Ghiglia

THE DEPUTY SECRETARY GENERAL

Filippi